

FRESH TERM: Beur jail superintendent Singh teaches a prisoner's son inmates, either awaiting trial—which may take years—or convicted of crimes, including murder. Twenty per cent of these women have children living in jail. The inmates, say jail officials, are wracked by guilt,

Not surprisingly then, some like Meena Devi, Kalawati and Sunita Devi of Beur jail have refused to name their children as they see it as a bad omen. Two of them call their daughters *Bachchi* while a third has temporarily named her's *Susti* (laziness). They say the girls will have proper names once they are out of prison.

In neighbouring Jharkhand, as many as 141 children share jail cells with 703 women. There are also cases of men, after allegedly killing their wives, have landed in jails with their children. According to a state prison official, it is men of this kind who face the most difficulty in raising their children.

The governments in both states have now ordered prison authorities to help the children in prison grow up in as normal circumstances as is possible.

According to Inspector General of Prisons, Bihar, Sandeep Pondrik, a nutritious diet chart has been prepared for these children following directives from the Supreme Court. Kiran Ghai, Chairperson of Child Rights Committee in Bihar Legislative Council, however, remains unimpressed even though the Bihar Government has recently increased the monthly food outlay for each child to Rs 900. "It is a welcome step but this step alone is not enough to ensure proper childhood for these hapless children," she says.

Some Bihar prison officials, believe some of these children, may actually be better off in jail as they come from very poor families and have no one to take care of them outside. Beur jail Superintendent Dilip Kumar Singh says the children are provided sports facilities, equipment like balls as well



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as medical aid. Women volunteers from non-government organisations come to teach them, and he says, "We give them everything that we can, except freedom".

Jharkhand, however, seems to have gone a step further. The state Government has sanctioned a project worth Rs 2.2 crore

to set up play schools and recruit teachers, midwives and nurses for children of inmates.

Also, the prison department has initiated a process of taking inmates' children on excursions twice a fortnight. The jail authorities take the children to zoo and for picnics, movies and entertainment shows. "The idea is to refresh their spirits, give them a real childhood, and also prepare them for the future," says Sabhapati Kushwaha, former inspector general of prisons in Jharkhand, during whose tenure these measures were effected.

Kushwaha says the experiment also helped prison officials understand the situation better. "I remember a five-year-old child being surprised seeing a dog come across the road when we took him outside the jail. He had never seen a dog before."

But more needs to be done. Ganesh Reddy, secretary of NGO Citizen's Foundation, says, "This is not enough. The state Government must make provision for crèches where these children can get a proper education. Plus, an independent mechanism should be evolved to ensure they get nutritious food as well as books and toys." Pondrik is impressed with what has been done across the Bihar border and says, "We would like to borrow these ideas from Jharkhand".

Ghai believes the focus of such an exercise should also extend to what are now called "special" homes (previously the remand homes that house juveniles in conflict with the law). She says the inmates there were ill-treated, "They are herded in stifling rooms with appalling sanitation and a constant threat of disease.". In 2004, 88 children escaped from juvenile homes in Patna and Ara. Again, 54 juveniles charged with various crimes escaped from a remand home in Patna this October. Some inmates accused management of beating them up. As many as 143 children are housed in three rooms in Patna's remand home.

There seem to be efforts made towards the care of young children inside prison in Bihar and Jharkhand. But there is still a lack of awareness as to how to handle those a few years older who stray into a life of minor crime. ■